## Annexure 8

**(TO BE PRINTED IN Rs.100/- STAMP PAPER (Non-Judicial))**

**and to be NOTARIZED**

**DEED OF INDEMNITY**

THIS DEED OF INDEMNITY executed at _____ on this ---------- day of ----------, Two Thousand and _____ by M/s.----------, a company registered under the Indian Companies Act, having its Registered office at ----------, India represented herein by its Authorised Signatory ----------(Name) the ……(Designation), hereinafter called the "MANUFACTURER" (the term "MANUFACTURER" shall wherever the context so permits includes its representatives, executors, assigns, successors and successors in interest)

WHEREAS the MANUFACTURER has requested Ministry of New and Renewable Energy (MNRE), Government of India having its office at Block -14, CGO Complex, Lodhi Road, New Delhi – 110 003, (herein after referred to as MNRE) for inclusion of M/s.---------- along with ---------- solar PV cell / module model, in the Approved List of Models and Manufacturers of solar PV cells / modules (ALMM) and has submitted an application dated ----------(dd/mm/yyyy) along with required documents to that effect (hereinafter referred to as the "Application") with MNRE. In this regard, the MANUFACTURER is executing a Deed of Indemnity, which forms part and parcel for the Application dated ----------(dd/mm/yyyy), indemnifying the MNRE against any loss, damages, failures, performance issues, breakdowns, etc., that they may suffer or incur and in order to safeguard the interests of MNRE.

**NOW THIS DEED OF INDEMNITY WITNESSETH**

1. That in pursuance of the documentation submitted by the MANUFACTURER for inclusion of ----------(company) along with ---------- solar PV cell / module model in the Approved List of Models and Manufacturers of Solar PV Cells/ Modules (ALMM) issued by the MNRE, the MANUFACTURER shall indemnify and keep indemnified MNRE against any loss, damages, failures, performance issues, breakdowns, etc., that may arise on account of such inclusion of the said solar PV cell/ module manufacturer and model in the Approved List of Models and Manufacturers of Solar PV Cells / Modules (ALMM) issued by MNRE, based on the approval of the MNRE.
2. The MANUFACTURER shall indemnify MNRE against any loss, damages, failures, performance issues, breakdowns, etc., on account of any insurance claim.

3. The MANUFACTURER shall indemnify MNRE against any loss, damage that may arise on account of disputes raised by any third party relating to design rights, intellectual property rights, and all other similar claims as MNRE is in no way connected with it.
4. The MANUFACTURER shall indemnify MNRE against any consequential loss, damages on account of inclusion of the said solar PV cell / module manufacturer and model in the Approved List of Models and Manufacturers of Solar PV Cells/ Modules (ALMM) and any other issues in connection with the MANUFACTURER and solar PV cell / module model.
5. The MANUFACTURER shall indemnify MNRE against any documentation loss, damages if arises.
6. The MANUFACTURER shall indemnify MNRE against any loss, damages, failures, performance issues, breakdowns etc., that may arise on account of providing incorrect/false information and/or documentation.
7. The MANUFACTURER shall indemnify MNRE against any loss, damages, failures, performance issues, breakdowns etc., that may arise on account of any legal dispute arising between MNRE and MANUFACTURER or MNRE and any Third Parties.
8. The MANUFACTURER shall indemnify MNRE against any loss, damages, failures, performance issues, breakdowns, etc., due to any issues related to design, manufacture/ assembly, installation, grid synchronization / commissioning and operation and maintenance of the solar PV cells/ modules.
9. The MANUFACTURER shall indemnify MNRE against any loss, damages, failures, performance issues, breakdowns, etc., or any issues at site(s) including non-compliance of standards.
10. The MANUFACTURER shall indemnify and keep indemnified MNRE against any consequential loss, damages and failures arising out or in connection with the review / verification of documentation and information
11. The MANUFACTURER shall indemnify and keep indemnified MNRE against any loss, damages, failures, claims etc., due to changes / modifications in the Type Certification documents and other documents.
12. The MANUFACTURER shall indemnify MNRE against any loss, damages, failures, performance issues, breakdowns, etc., or any issues at site(s) that may arise on account of any reasons apart from the above mentioned.
13. The MANUFACTURER unconditionally and irrevocably agree and undertake to indemnify and keep indemnified, save, defend and hold harmless MNRE in respect of any actions, claims, suits, demands, costs, damages, expense, failures in solar PV modules / solar PV power projects, causes of any actions for illness, injuries, death or any consequential losses that may arise in the event of such inclusion of ----------(company) along with ---------- solar PV cell / module model in the Approved List of Models and Manufacturers of Solar PV Cells/ Modules (ALMM).
14. The MANUFACTURER shall indemnify and keep indemnified MNRE that in the event of any loss, liability that they may suffer or any claim that may be made against MNRE would be made good by the MANUFACTURER for the loss, costs, charges, expenses, claims whatsoever

made including any claim that may be made under any act will be fully taken care of and paid only by the MANUFACTURER and no such claim made in whatsoever manner, will be fastened on MNRE.

IN WITNESS WHEREOF, the party hereto has executed this Deed of Indemnity on the date, month and year first above written.

**Signature of Authorised Signatory**

**Name** _____

**Designation**_____

**WITNESSES:**

**1.**_____

**2.**_____